

HOUSE BILL 1537

By Shaw

AN ACT to amend Tennessee Code Annotated, Title 2;
Title 4; Title 8, Chapter 18 and Title 67, Chapter 1,
relative to the Tennessee assessor of property
certification board.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-29-249(a), is amended by inserting the following new subdivision:

() Tennessee assessor of property certification board, created by § 67-1-515;

SECTION 2. Tennessee Code Annotated, Section 67-1-515, is amended by deleting the section and substituting:

67-1-515. Board — Members and officers — Terms of appointment — Quorum — Administrative support.

(a) There is created the Tennessee assessor of property certification board, to be composed of five (5) members as follows:

- (1) One (1) member appointed by the comptroller of the treasury;
- (2) One (1) member appointed by the secretary of state;
- (3) One (1) member appointed by the state board of equalization;
- (4) One (1) member appointed by the executive director of the

Tennessee Association of Assessing Officers; and

(5) One (1) member appointed by the governor from a list of nominees submitted by the Tennessee real estate commission and the Tennessee real estate appraiser commission.

(b)

- (1) Initial appointees to the board serve staggered terms as follows:

(A) Persons appointed under subdivisions (a)(1)-(3) serve initial terms of three (3) years that expire on June 30, 2030; and

(B) Persons appointed under subdivisions (a)(4) and (5) serve initial terms of four (4) years that expire on June 30, 2031.

(2) Following the expiration of members' initial terms as prescribed in subdivision (b)(1), all appointments to the board are for terms of four (4) years that begin on July 1 and terminate on June 30 every four (4) years thereafter.

(3) Board members appointed under subdivision (b)(1) serve until the expiration of the term to which they were appointed and until their successors are appointed and qualified.

(4) The appointee representing the comptroller of the treasury serves as chair of the board.

(5) Upon the death, resignation, or removal of a board member, a replacement must be appointed by the party representing the same area of interest as the member whose position has been vacated to fill the unexpired term of the member.

(c) An assessor of property of a county must not be appointed to the board if that person is subject to reelection or reappointment as an assessor of property during that person's term of service on the board.

(d)

(1) The board shall only meet as is necessary to fulfill its duties.

(2) Four (4) members of the board constitute a quorum, and a majority of those present is necessary to pass or reject any official business.

(3) All materials and correspondence submitted to the board must be received through the office of the coordinator of elections, who shall forward such information to the board.

(4) The board shall keep complete and accurate records of the proceedings of all meetings. A copy of records of all proceedings must be kept on file in the office of the coordinator of elections and open to public inspection.

(5) The board shall receive administrative support from the department of revenue; provided, however, that any costs associated with the operation of the board must be paid from existing funds appropriated to the department.

(e) Subject to the approval of, and in conjunction with, the comptroller of the treasury, the board may promulgate rules to establish certification requirements and other qualifications for persons seeking the office of assessor of property in accordance with this section. The board shall submit such rules to the administrator of elections of each affected county election commission. The county election commission shall publish the rules either in a local newspaper of general circulation in the county or on the election commission website at least sixty (60) days prior to the qualifying deadline for either the primary or general election, or appointment by the legislative body of the county.

67-1-516. Qualifications for office.

(a)

(1) The Tennessee assessor of property certification board has, and shall exercise, the authority to review the qualifications of all candidates for both elected and appointed positions where there is a vacancy as the assessor of property. Candidates for the office of assessor shall file affidavits and other

evidence, as required, with the board no later than fourteen (14) days prior to the qualifying deadline for candidates in the election.

(2) After the completion of its review of the applicable qualifications and standards under subdivision (a)(1), the board shall certify to the coordinator of elections that a candidate's qualifications are acceptable to the board prior to the candidate's name being placed on the ballot. The coordinator of elections shall forward the certification to the appropriate county election commission. A certificate of qualification from the board must be filed with the candidate's qualifying petition prior to the qualifying deadline.

(3) Votes for write-in candidates, whether in a primary or general election, must only be counted for a person who has been certified by the board prior to the date of the election. Persons seeking a party nomination or to be elected by write-in ballot shall file affidavits and other evidence the board requires with the board no later than sixty-four (64) days prior to the date of the election.

(4) Candidates for assessor of property being considered for an appointment where there is a vacancy shall, prior to their appointment to the office, file with the board evidence satisfactorily demonstrating that they meet the qualifications to hold the office as prescribed in subsection (b) and subdivision (c)(1). However, in counties that have appointed assessors of property and have established more stringent qualifications and standards by private act in accordance with subsection (b) and subdivision (c)(2), candidates shall submit evidence of their qualifications to the local appointing authority and are not required to submit evidence of their qualifications to the board.

(b)

(1)

(A) To qualify for the office of the assessor of property in a county, a candidate must:

(i) Be a qualified voter of the county and a resident of the county for one (1) year prior to the qualifying or appointment deadline, as applicable; and

(ii)

(a) Have three (3) years of experience as a licensed real estate appraiser in this state;

(b) Have four (4) years of experience as a licensed real estate agent in this state;

(c) Have no less than three (3) years of experience in the field of mass appraisal; or

(d) Hold a designation from the International Association of Assessing Officers (IAAO).

(B) Evidence of any of the qualifications listed in subdivision (b)(1)(A) must be submitted to the Tennessee assessor of property certification board in the form of affidavits.

(2)

(A) Satisfactory evidence of a real estate appraisal license or real estate license issued in this state must be in the form of the license provided by the licensing state entity and must include the candidate's license number.

(B) Evidence of experience in mass appraisal must be submitted by affidavit from the candidate.

(C) Satisfactory evidence of the IAAO designation must be in the form of certification, a transcript, or other official documentation from the IAAO.

(c)

(1) A candidate for assessor of property must have earned at least a high school diploma, high school equivalency credential, or other official documentation approved by the state board of education to qualify for the position. The candidate must submit a copy of such education credentials to the Tennessee assessor of property certification board to indicate the completion of such educational requirements.

(2) A county may, by private act, require more stringent qualifications and standards than those set forth in subdivision (c)(1) for persons to qualify for the office of the assessor of property. Any county that establishes more stringent qualifications and standards by private act shall transmit a copy of the private act to the board.

(d) Assessors of property who occupy the office as of December 31, 2026, and who have met the applicable qualifications for the position at the time of their last election may succeed themselves in office without having to meet the qualifications prescribed in subsection (b) for as long as such persons continuously hold the office. If an incumbent leaves office for any reason and is subsequently elected or appointed to the position of assessor of property, then the incumbent is subject to the qualifications set forth in subsection (b).

(e)

(1) A person may challenge a candidate's qualifications for assessor of property; provided, that the challenge is filed in writing with the Tennessee

assessor of property certification board no later than twelve o'clock (12:00) noon, prevailing time, on the third day after the qualifying deadline, as determined under § 2-5-101(a). In counties where the position is appointed, due to a vacancy, the challenge must be filed by a deadline established by the local appointing authority.

(2) If a candidate's qualifications are challenged pursuant to subdivision (e)(1), the board shall:

(A) Notify the candidate of the challenge;

(B) Review and verify the candidate's qualifications as prescribed in subsection (b) and subdivision (c)(1);

(C) Review and verify the candidate's required qualifications and standards under a county's private act, if applicable, in addition to the review and verification required under subsection (b);

(D) If the board determines the candidate does not possess the required qualifications for the assessor of property position:

(i) Disqualify the candidate;

(ii)

(a) In counties where the position is filled by popular election, notify the candidate and county election commission of its determination no later than twelve o'clock (12:00) noon, prevailing time, on the seventh day after the qualifying deadline, as determined under § 2-5-101; or

(b) In counties where the position is appointed due to a vacancy, notify the candidate and local appointing

authority of its determination prior to the appointment to office; and

(E) Request that the county election commission:

(i) Not print the candidate's name on the ballot; and

(ii) Remove the candidate's name from any printed ballot.

SECTION 3. The headings to sections in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect July 1, 2027, the public welfare requiring it.